DAMO RESOURCES (PRIVATE) LIMITED
Versus
ZIMBABWE BASE METALS MINING (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
V. NDLOVU J
HARARE; 28 October 2025, 23 February 2026

Ordinary Chamber Application

T. A. Mandizvidza, for the Applicant
L. Madhuku, for the Respondent

V. NDLOVU J: This is an application for the registration of an Arbitral Award in terms of Article 35 of the Model Law in the Arbitration Act [*Chapter 7:15*]. The Applicant prays for the following relief:

1. The application for registration of an arbitral award be and is hereby granted.
2. The arbitral award made in favour of Applicant as against the Respondent by the Honourable Kevin Terry, dated 8 February 2024, be and is hereby registered as an order of this court.
3. Respondent is ordered to transfer five (5) mining claims namely Mistress 2 (Registration No. 15100BM), Felspar (Registration No. 13415BM), Mistress 3 (Registration No. 6832BM), Mistress 4 (Registration No. 6972BM) and Mistress (Registration No. 6621) to Venus Mining and Exploration Company (Private) Limited, with immediate effect, failing which the Sheriff of the High Court of Zimbabwe or his/her designated agent to take the necessary steps to effect the said transfer of the mining claims
4. Respondent shall pay costs of suit.

BACKGROUND

The Applicant is a company duly registered under Zimbabwean law. The Respondent is also a company registered in Zimbabwe. The Respondent opposes this application on both procedural and substantive grounds.

The Applicant asserts compliance with the essential requirements of Articles 35 and 36 of the Model Law, including the submission of a certified copy of the arbitral award for registration, the original arbitration agreement as mandated by Article 7, and, where applicable, the translation of the award into English.

In opposition, the Respondent raised a preliminary point, claiming that the application is defective due to the Applicant's failure to attach either a duly authenticated original award or an authenticated copy, as mandated by Article 35(2) of the Model Law. The Respondent maintains that the submitted document is merely a certified copy lacking the necessary authentication and asserts that this procedural defect cannot be remedied by attaching it to an answering affidavit.

The Respondent emphasised the importance of authentication by the arbitrator, arguing that without a duly authenticated original or certified copy, the application cannot proceed. In contrast, the Applicant contends that the Respondent's interpretation is overly stringent, arguing that the Model Law permits submission of either a duly authenticated original or a certified copy. Citing *Matthews v Craster International Private* Ltd HH 707/15, the Applicant insists that providing a certified copy is sufficient. They also highlight that the purpose of requiring authentication is to prevent fraudulent registrations, and that, since there have been no allegations of fraud, the Respondent's objections serve merely to delay the proceedings. The Applicant notes that the award was communicated to the Respondent by the arbitrator via email.

On merit, the Respondent opposes the recognition and enforcement of the arbitral award, asserting that it contravenes public policy in Zimbabwe under Article 36(1) (b) (ii) of the Model Law. They had previously filed an application registered as HCHC 257/24, seeking to set aside the award on similar public policy grounds, which was ultimately dismissed by the Supreme Court.

The Applicant argues that since the Supreme Court has already determined that the award does not violate public policy, the Respondent's continued opposition lacks merit. They contend that the Respondent should have withdrawn its objections and request that the court should register the award and impose costs for the unwarranted opposition.

ISSUES FOR DETERMINATION

a. Whether or not the application for the registration of an Arbitral Award as mandated by Article 35(2) of the Model Law is defective?

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APPLICATION OF THE LAW TO THE FACTS

a. Whether or not the application for the registration of an Arbitral Award as mandated by Article 35(2) of the Model Law is defective?

Article 35(2) of the Model Law, First Schedule to the Arbitration Act [*Chapter 7:15*] provides:

> "(2) The party relying on an award or applying for its enforcement shall supply a duly authenticated original award, or a duly certified copy thereof and the original arbitration agreement referred to in Article 7 or a duly certified copy thereof..."

In *Matthews* v *Craster International (Private) Ltd* HH707/15, Mafusire J at p.4,

> "But of course, art 35 says an authenticated original or certified copy of the award is what must be "supplied"……
>
> Litigation is not a game of wits. It is a serious legal process to solve serious legal disputes. In casu, I could not conceive of any prejudice suffered by the respondent by reason of the procedure that the applicant had adopted…..
>
> If the court is satisfied that the award is regular on the face of it, and that it is not deficient in any of the ways contemplated by articles 34 and 36 of the Arbitration Act, then the court will register it."

In *Gwanda Rural District Council v Lourens Marthinus Botha (Snr*) SC-174-20 Bhunu JA stated as follows:

> "It is clear that the purpose of requiring the original award before enforcement is to protect a respondent from the enforcement of a fake or erroneous award. Article 35 (2) was therefore crafted for the benefit of the respondent. Where however, the respondent wrongfully bars or disables the applicant from obtaining the original award, he divests himself of the due protection of the law. Thus in this case, the appellant must be deemed to have waived its right to the due protection of the law provided by Article 35 (2) of the Model Law."

The Respondent's insistence on authentication is overly technical. The Applicant has supplied a certified copy of the award, communicated directly by the arbitrator. No allegation of fraud or irregularity has been made. The Respondent has suffered no prejudice.

The purpose of Article 35(2) is protective, not punitive. To elevate form over substance in circumstances where authenticity is not in dispute would undermine the efficiency of arbitration and frustrate the legislative intent behind the Arbitration Act.

On the merits, the Respondent's reliance on public policy is untenable. The Supreme Court has already ruled on this issue, dismissing the application to set aside the award. Arbitration is intended to provide finality. Endless challenges on the same grounds erode confidence in the arbitral process and defeat the principle of party autonomy. This Court is bound by that determination. To permit the Respondent to relitigate the same issue under the guise of opposition to registration would constitute an abuse of process.

DISPOSITION

The Respondent's objections are without merit. The application is procedurally sound and substantively justified. The arbitral award is valid, binding, and enforceable. The application is hereby granted.

ORDER

1. The application for registration of an arbitral award be and is hereby granted.
2. The arbitral award made in favour of Applicant against the Respondent by the Honourable Kevin Terry, dated 8 February 2024, be and is hereby registered as an order of this court.
3. Respondent is ordered to transfer five (5) mining claims namely Mistress 2 (Registration No. 15100BM), Felspar (Registration No. 13415BM), Mistress 3 (Registration No. 6832BM), Mistress 4 (Registration No. 6972BM) and Mistress (Registration No. 6621) to Venus Mining and Exploration Company (Private) Limited, with immediate effect, failing which the Sheriff of the High Court of

Zimbabwe or his/her designated agent to take the necessary steps to effect the said transfer of the mining claims

4. Respondent shall pay costs of suit.

V NDLOVU J:……

Masiya Sheshe & Associates, Applicant's legal practitioners
Lovemore Madhuku Lawyers, Respondent's legal practitioners